

**Court No. - 3**

**Case :-** WRIT - C No. - 30315 of 2023

**Petitioner :-** Chandraveer

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Ram Chandra Solanki, Sanjay Kumar  
Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Manoj Bajaj, J.**

Upon a call given by High Court Bar Association, Allahabad,  
lawyers are abstaining from work.

Learned Standing Counsel is present.

Put up this case on 27.09.2023 as fresh.

**Order Date :-** 14.9.2023

M.S. Ansari

(Manoj Bajaj, J.)      (Siddhartha Varma, J.)

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Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Manoj Bajaj, J.**

Heard learned counsel for the petitioner and Sri Alok Mishra,  
learned counsel appearing for the Electricity Department.

Supplementary Affidavit filed today be kept on record.

From page 46 of the writ petition and also from page 57 of it, we  
find that videography was done and an audio recording of the  
conversation between the petitioner and the officials of the  
Electricity Department was also done.

Learned counsel for the Electricity Department may file a counter  
affidavit within a week and may bring on record the transcripts of  
the audio and video recordings. In the counter affidavit, the details  
of remedies which the petitioner might have taken against the First  
Information Report lodged against the petitioner be also brought  
on record. The transcription shall be done in the presence of the  
petitioner.

Place this case on 17.10.2023 as fresh.

**Order Date :-** 9.10.2023

GS

(Manoj Bajaj, J.)      (Siddhartha Varma, J.)

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Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Manoj Bajaj, J.**

Learned counsel for the Electricity Department prays for time for complying with the order dated 09.10.2023.

Put up this case on 21st November, 2023 as fresh.

**Order Date :-** 17.10.2023

Raj

**Court No. - 3**

**Case :-** WRIT - C No. - 30315 of 2023

**Petitioner :-** Chandraveer

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Ram Chandra Solanki, Sanjay Kumar  
Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Shekhar B. Saraf, J.**

Learned counsel for the Electricity Department Sri Alok Mishra prays for and is granted a week's further time to comply with the order dated 9.10.2023.

List this case on 6.12.2023 as fresh.

**Order Date :-** 21.11.2023

Rakesh

**Court No. - 3**

**Case :-** WRIT - C No. - 30315 of 2023

**Petitioner :-** Chandraveer

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Ram Chandra Solanki, Sanjay Kumar  
Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Shekhar B. Saraf, J.**

1. Counter affidavit filed today be kept on record.
2. Learned counsel for the electricity department has produced a pen-drive of the video recording, which had taken place at the time of the inspection. The video recording be shown to the petitioner in the presence of Ms. Priyanka Midha, learned Additional Chief Standing Counsel within a period of two days in the presence of learned counsel for the petitioner.
3. The learned Additional Chief Standing Counsel Ms. Priyanka Midha would submit a report after seeing the video recording on the next date fixed.
4. Put up this case as fresh on **12.12.2023**.
5. By the next date fixed, learned Counsel for the electricity department may file a supplementary counter affidavit indicating as to how the provisions of Clause 8.1 of the Electricity Supply Code, 2005 have been followed.

**Order Date :-** 6.12.2023

Vijay

**Court No. - 3**

**Case :-** WRIT - C No. - 30315 of 2023

**Petitioner :-** Chandraveer

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Ram Chandra Solanki, Sanjay Kumar  
Asthana, Shailendra Kumar Kushwaha

**Counsel for Respondent :-** C.S.C., Alok Mishra

**Hon'ble Siddhartha Varma, J.**

**Hon'ble Shekhar B. Saraf, J.**

Inspection report passed on by Ms. Priyanka Midha, learned Additional Chief Standing Counsel be kept on record.

The inspection report has brought in black and white the contents of videography.

From a perusal of the writ petition, the inspection report and the orders etc., we are of the view that disputed questions of fact are involved. The petitioner, if so advised, may approach the appellate forum under Section 127 of the Electricity Act, 2003. We also provide that if the petitioner files an appeal within 15 days from today then the appellate forum would decide the appeal within a period of two months from the date of filing of appeal without going into the question of limitation.

The writ petition is disposed of with the aforesaid observations.

**Order Date :-** 12.12.2023

Rakesh

(Shekhar B. Saraf, J.)      (Siddhartha Varma, J.)